

Rural Municipality of Murray Harbour

By Law #113

Being a bylaw to regulate the proceedings of Council

BE IT ENACTED by the Council of the Rural Municipality of Murray Harbour as follows:

PART I – INTERPRETATION AND APPLICATION

Title

This Bylaw shall be known as, and may be cited as the “Procedural Bylaw”.

Authority

Subsection 86(2)(e) of the *Municipal Government Act* R.S.P.E.I. 1988, Cap. M-12.1., provides that a Council must establish a procedural bylaw to regulate its proceedings in accordance with the Act.

Application

This bylaw applies to all Members of Council, the Chief Administrative Officer, Members of any Council Committees, Rural Municipality of Murray Harbour employees, those who appear before Council and Members of the general public.

When any matter relating to proceedings arise which is not covered by a provision of this bylaw or the Act, the matter shall be decided by reference to the latest edition of Robert’s Rules of Order.

In the event of any conflict between the provisions of the Act and this bylaw, the Act will prevail.

Definitions

“Chief Administrative Officer” or “CAO” means the administrative head of a municipality as appointed by Council under subsection 86(2)(c) of the *Municipal Government Act*.

“Council” means the Mayor and other Members of the Council of the municipality.

“Councillor” means a Member of Council other than the Mayor.

“Point of information” means the procedural mechanism by which a Member may present or receive information of interest to Council.

“Point of order” means the procedural mechanism by which a Member may rise where this by-law or any other procedural legislation is believed to have been infringed.

“Point of privilege” means the procedural mechanism by which a Member may rise to address incorrect, defamatory or slanderous statements made about the Council, Councillors, or employees of the municipality.

“Quorum” is a majority of all the Members of Council or a Council Committee. Vacancies are not counted in determining quorum except where the remaining number of Council Members is not less than four.

“Regulations” means the Regulations adopted by the Lieutenant Governor in Council pursuant to the *Municipal Government Act*.

PART II – MEETINGS OF COUNCIL

First Meeting

A newly elected Council shall not transact any business until the Oaths of Office have been taken and subscribed to by persons present who have been elected to office.

At the first meeting of Council following a general election, Council shall: establish by resolution a schedule of meeting dates for the next 12 months, providing for no fewer than six (6) Council meetings open to the public in accordance with 110(3) of the *Municipal Government Act*; and appoint Council Members to Council Committees in accordance with the Regulations and this bylaw if Council so desires to create Committees.

Scheduling of Meetings

Regular Council meetings shall be held on the first Wednesday of each month at the Municipal Offices commencing at 7:00pm, unless changed by resolution of the Council.

The CAO will ensure that the schedule of regular meetings is published in accordance with subsection 110 (3) and (4) of the Act, the requirements of the Regulations, and subsection 7.2 below.

If a regularly scheduled meeting of Council falls on a day that is a Statutory Holiday, the regular Council meeting will be held the following day unless rescheduled to another day or cancelled by resolution of Council.

A regular meeting of Council may be rescheduled:
by resolution of Council;
in accordance with this bylaw; or
by the CAO if it is apparent that quorum will not be achievable.

Council may, by resolution, establish a time limit for any meeting and may extend the time limit for any regular Council meeting with a unanimous vote in favour of the motion to extend the meeting.

Notice of Meetings

Notice of regularly scheduled Council meetings will be included in an annual schedule of meetings.

Council shall post the annual schedule of Council meeting, including the date, time, and place of each meeting in:

the Municipality's web site, and

the Municipality's Notice Board located in the Community Centre. As further options, the CAO may also include signage, posters, newsletters or newspaper advertisements as per section 110(4)] if additional notification is deemed necessary by the Council.

If Council changes the date, place or time of a regular or special meeting, the CAO must give at least twenty four (24) hours' notice of the change to the public through the format's noted in Section 7.2 above.

If Council changes the date, place or time of a regular or special meeting, the CAO must give at least twenty four (24) hours' notice of the change to all Members of Council by providing a copy of the notice to each Council Member at the place to which the Member has directed such notices be sent.

The notice shall specify the type of meeting and the actual or revised date, place and time of the meeting.

Notice of a change in date, time or place of a regularly scheduled meeting must be provided at least twenty four (24) hours in advance of the meeting to any Councillors not present at the meeting at which the change was made and to the public.

Notice of special meetings must be provided at least twenty four (24) hours in advance of the meeting to all Members of Council and the public.

Notice of a meeting or hearing must be given at least seven (7) days before the Council meeting or public hearing, as the case may be, at which any of the following matters is to be considered:

a proposal by Council to transfer land below fair market value (subsection 143(1) of the Act);

a local improvement to which one or more objections were made to the CAO within 30 days of receipt of notice thereof (section 203 of the Act); or

a permanent street closure (subsection 213(3) of the Act).